

The Goa Public Men's Corruption (Assets and Liabilities) Rules, 1993

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State of Goa - Act

The Goa Public Men's Corruption (Assets and Liabilities) Rules, 1993

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The Goa Public Men's Corruption (Assets and Liabilities) Rules, 1993

Rule THE-GOA-PUBLIC-MEN-S-CORRUPTION-ASSETS-AND-LIABILITIES-RULES-1993 of 1993

Published on 14 June 1993

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The Goa Public Men's Corruption (Assets and Liabilities) Rules, 1993

Published vide Notification No. 1/26/80-VIG-Vol-1, dated 14th June, 1993

1.

/26/80-VIG-Vol-I. - In exercise of the powers conferred by sub-section (1) read with clause (e) of sub-section (2) of section 32 and sub-clause (iii) of clause (c) of section 2 of the Goa Public Men's Corruption (Investigations and Inquiries) Act, 1988 (Act

7 of 1991

), the Government of Goa hereby makes the following rules, namely:-

1. Short title and commencement.

(1)

These rules may be called the Goa Public Men's Corruption (Assets and Liabilities) Rules, 1993.

(2)

They shall come into force at once.

2. Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the Goa Public Men's Corruption (Investigations and Inquiries) Act, 1988 (Act 7 of 1991

);

(b)

"Defaulter" means a public man who has failed to submit his property statement as laid down in section 25 of the Act or has submitted his statement after the due date without sufficient cause, or has submitted false or incorrect statement before the competent authority;

(c)

Words and expressions used but not defined in these rules and defined in the Act, shall have the meanings respectively assigned to them in the Act.

3.

Forms for statement of assets and liabilities.

- The property statement in respect of both movables and immovables as envisaged in section 25 of the Act, shall be submitted in Forms A and B appended to these rules.

4.

Competent Authority.

- The authority to whom the property statement has to be submitted shall be specified against the categories of public men as noted below, namely:-

(1)

Chairman of Public Sector Undertaking

-

Minister in-charge of the Administrative Department concerned.

(2)

Mg. Director of Public Sector Undertaking

-

Secretary in-charge of the Administrative Department concerned.

(3)

Chairman of Planning & Development Authority

-

Minister in-charge of Urban Development Department.

(4)

Secretary of Planning & Development Authority

-

Secretary in-charge of Urban Development Department.

(5)

Chairman/President of Statutory Body owned or controlled by Government

-

Minister in-charge of the Administrative Department concerned.

(6)

Secretary/Mg. Director of Statutory body owned or controlled by Government

-

Secretary in-charge of the Administrative Department concerned.

(7)

President/Vice-President of Municipal Council

-

Minister in-charge of the Urban Development Department.

(8)

President/Vice-President of Village Panchayat

-

Director of Panchayats.

(9)

Member of State Transport Authority

-

Secretary in-charge of the Administrative Department.

(10)

Member of Regional Transport Authority

-

Secretary in-charge of the Administrative Department.

5.

Action against defaulter.

(1)

If the Competent Authority is satisfied on enquiry that public man is a defaulter, the Competent Authority shall report the fact to the Commission and the Commission shall, on receipt of such a report, call for an explanation from the public man in respect of the default.

(2)

The public man shall submit his explanation, if any, within thirty days from the date of receipt of the notice calling for his explanation under sub-rule (1).

(3)

The Commission may extend the time fixed under sub-rule (2) for sufficient cause.

(4)

The Commission after giving due consideration to all aspects and if found necessary or if so requested by the public man after giving him a personal hearing, may arrive at a finding on the matter and report the same to the State Government. The State Government may, after considering the report of the Commission, if satisfied that it is necessary in the public interest, take appropriate action as deemed necessary.

Form - A

(See Rule 3)

Statement of Movable properties of public man and members of his family.

Details of property

Owned or acquired by whom

Date of acquisition

Mode of acquisition (whether acquired by purchase or inheritance or gift, mortgage or any other means)

Debts and other liability incurred by him/her or by means of his/her family, directly or indirectly

Date on which the debt/liability was incurred

Remarks

1

2

3

4

5

6

7

Signature

Full name and address

Note :- (1) Family includes the spouse and such parents, unmarried sisters and children of the public man as are dependent on him/her.

(2)

Details of property should include (i) shares, debentures, deposits and cash including bank deposits owned, acquired by him/her either in his/her own name or by any other member of his/her family, (ii) Movable properties other than those specified in item (i) above.

(3)

Articles of movable property exceeding four thousand rupees in value need alone be shown.

Form - B

(See Rule 3)

Statement of Immovable properties of public man and members of his family

Name of the District, Taluka and Village in which

property situated

Name and details of property

Present value

Acquired by whom

How acquired whether by purchase lease, mortgage, inheritance gift or otherwise with date of acquisition and name with details of person, persons whom acquired

Annual income from property

Remarks

Housing and other Buildings

Lands Nature and extent

1

2

3

4

5

6

7

8

Signature

Full name and address

Note :- (1) Family includes the spouse and such parents, unmarried sisters and children of the public man as are dependent on him/her.

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